

CHAPTER 15:

MAP AND TEXT AMENDMENTS

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CHAPTER 15: MAP AND TEXT AMENDMENTS

Section 15.1 Purpose

The purpose of this chapter is to set forth procedures for amending the text of these regulations and the zoning classification of land as shown on the Zoning Map. The purpose is not to relieve particular hardships, nor to confer special privileges or rights on any person, but only to make adjustments necessary in light of changed conditions or changes in public policy. Procedures for making amendments to the Unified Development Ordinance text or Zoning Map are also set forth.

Section 15.2 Amendment Initiation

A. Any amendment may be initiated by the Town Council or Planning Board on its own resolution, by any owner of a legal or equitable interest in the property affected by the amendment, or by a local government agency of China Grove, or by any other person living or owning property within the zoning jurisdiction of China Grove in accordance with the procedures set forth herein.

B. For Conditional District Rezoning, only the owner(s) of a legal or equitable interest in the property may initiate the amendment, with consent required from all owners of the property to be included.

Section 15.3 Application Submittal

15.3.1 Applications for All Amendments

An application form and fee shall be submitted by the applicant to the Zoning Administrator. The application shall include a description of the proposed change. The application form and fee shall be waived for any amendment request submitted by a China Grove official or agency acting on behalf of the Town of China Grove. Completed applications shall be forwarded by the Zoning Administrator to the Planning Board at their next regularly scheduled meeting.

15.3.2 Text Amendments

For text amendments, the application shall contain a reference to the specific section, subsection, paragraph or item proposed to be changed, as well as the wording of the proposed change, and the reasons therefore.

15.3.3 Map Amendments (Rezoning)

A. For all map amendments (rezonings), applications shall contain a statement regarding the consistency of the request with adopted Town plans and the surrounding area, as well as a written statement of reasonableness when adopting or rejecting any petition for a zoning map amendment. The plan consistency statement and statement of reasonableness may be approved in a single statement.

B. For Conditional Zoning District map amendments (rezonings), the application shall be accompanied by the applicable proposed conditions which may include conditions specifying uses allowed; conditions limiting how the property will be developed or used; and/or a site-specific plan meeting the requirements of a *Major Site Plan* as specified in Chapter 10.

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Section 15.4 Text Amendment Process

15.4.1 Planning Board Action

A. The Planning Board shall have 30 days from the initial referral of the request by the Zoning Administrator to either recommend in favor of an amendment or in opposition to an amendment in writing by simple majority vote of those present and voting. The Planning Board shall include in their recommendation a statement of consistency. If the Planning Board should fail to act on any proposed amendment within 30 days after it is referred to the Board the request shall be forwarded to the Town Council without a recommendation.

B. The Planning Board shall include with its recommendation a written statement regarding the consistency of the request with adopted Town plans and policies.

15.4.2 Town Council Action

A. Upon receipt of a recommendation from the Planning Board, the Town Council shall conduct a legislative public hearing. Notice of public hearing shall be given as required by NCGS 160D-601 once a week for two consecutive weeks in a newspaper having general circulation in the area. The notice shall be published the first time not less than 10 days nor more than 25 days before the public hearing date.

B. Prior to the public hearing, any resident or property owner within the Town's jurisdiction may submit a written statement regarding a proposed zoning text amendment to the Town Clerk. If received by the Clerk at least two business days prior to the proposed vote on the amendment, the Clerk shall deliver said statement to the Town Council.

C. The decision by Town Council shall be by majority vote. A Council member present and not excused from the vote, but not voting on the case, is not counted in the vote total on the text amendment. The Town Council shall include with its decision a written statement regarding the consistency of the request with adopted Town plans and policies.

D. Upon approval of the text amendment, the Zoning Administrator shall oversee the updating of this Ordinance to reflect the approved changes.

Section 15.5 Standard Rezoning Process

15.5.1 General Provisions

When considering a standard rezoning request neither the Planning Board nor the Town Council shall evaluate the petition based on any specific proposal for the use or development of the affected property and the petitioner shall refrain from using any graphic materials or descriptions of the proposed use or development except for those which would apply to any use permitted in the requested district, provided, however, such information may be presented and considered when on an application for a map amendment for a Conditional Zoning District as outlined below.

15.5.2 Planning Board Action

A. The Planning Board shall have up to 30 days from the date of referral by the Zoning Administrator to recommend approval, approval with conditions, or denial of the request to the Town Council.

B. The Planning Board shall include with its recommendation a written statement regarding the consistency of the request with adopted Town plans and policies and the surrounding area.

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15.5.3 Town Council Action

A. Upon receipt of a recommendation from the Planning Board on a text amendment, standard rezoning, or Conditional Zoning, the Town Council shall conduct a legislative public hearing. Notice of the public hearing shall be given as follows:

1. A notice shall be published in a newspaper having general circulation in the Town once a week for two (2) consecutive weeks provided that the first notice is published not less than 10 days nor more than 25 days prior to the date established for the public hearing. The expanded published notice option for Rezoning (map amendments) noted in (2) below shall consist of a notice not less than one-half (1/2) of the newspaper page in size.

2. A notice of the public hearing shall also be sent by personal delivery or registered, certified, or delivery receipt mail by the Zoning Administrator or designee to the affected property and to all abutting property owners. Properties are considered abutting even if separated by a street, railroad, or other transportation corridor. The notice shall not be required if a Rezoning (map amendment) directly affects more than 50 properties owned by a total of at least 50 different property owners. Instead, the Town may elect to use expanded published notice as noted above in A.1.

3. For map amendments initiated by a third party, property owner(s) who are not signatories of the application for zoning map amendment must be notified through personal delivery or registered, certified, or delivery receipt mail. Such notice shall state the existing zoning classification and the classification requested by the third party and the date, time, and location of the public hearing. The notice will be written by the Zoning Administrator, yet the burden for making this actual notice is on the third party requesting the rezoning, the proof of which shall be provided to the Zoning Administrator prior to the public hearing. This requirement shall not apply if a map amendment is initiated by the Town.

4. Map amendments initiated by a third party may not decrease the development density of the land to be less than was allowed under its previous usage; or reduce the permitted uses of the land that are specified in the Section 7.14 Permitted Use Table to fewer uses than were previously allowed, without the consent of all property owners whose property is the subject of the down-zoning amendment, unless the down-zoning amendment is initiated by the local government.

5. For Rezoning (map amendments), the Town shall conspicuously post a notice of public hearing at the site proposed for rezoning at least 10 days prior to the public hearing. When multiple parcels are included within a proposed map amendment, a posting on each individual parcel is not required, but the Town shall post sufficient notices to provide reasonable notice to interested persons. The notice shall be removed only after the public hearing has been held.

B. Prior to the public hearing, any resident or property owner within the Town's jurisdiction may submit a written statement regarding a proposed zoning map amendment to the Town Clerk. If received by the Clerk at least two business days prior to the proposed vote on the amendment, the Clerk shall deliver said statement to the Town Council.

C. After the public hearing, the Town Council shall have up to 60 days to refer back to the Planning Board, approve, approve with conditions, or deny the request. Alternatively, the Town Council may suspend the review period and request additional information of the applicant, other governmental agencies, or interested/affected parties in order to aid in the review of the request or deferral of its consideration. For any zoning text or map amendment, any Town Council member present and not excused from the vote, but not voting, is not counted in the vote total. All zoning text and map amendments are decided by a simple majority vote.

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D. The Town Council shall include with its decision a written statement regarding the consistency of the request with adopted Town plans and policies and the surrounding area. The Town Council shall also include a written statement of reasonableness when adopting or rejecting any petition for a zoning map amendment. The plan consistency statement and statement of reasonableness may be approved in a single statement.

E. If a zoning map amendment is approved and the action was deemed inconsistent with the adopted plan, the zoning amendment shall have the effect of also amending the future land-use map in the approved future land-use plan.

F. Upon approval of the map amendment, the Zoning Administrator shall oversee the updating of the Zoning Map to reflect the approved changes.

Section 15.6 Conditional Zoning Process

15.6.1 General Provisions

A. The Conditional Zoning (CZ) approval process is established to address those situations when a particular use may be acceptable but the general zoning district(s) that would allow that use would not be acceptable. Rezoning of property to any CZ district is a voluntary procedure on the part of the property owner and is intended for firm development proposals. It is not intended or suited for securing early zoning for a tentative proposal that may be undertaken at some unknown time in the future. Such zones may be approved or changed only by the Town Council in accordance with the regulations contained herein.

B. The applicant initiating a CZ Rezoning that is proposed with a Site Plan or Subdivision Plan, shall provide at a minimum the drawings and information required for a Major Site Plan or Major Subdivision as outlined in Chapter 18.

C. When considering a petition for a rezoning to a Conditional Zoning District, the Planning Board and the Town Council shall evaluate the petition based on a specific proposal for the use or development of the affected property and the petitioner shall provide materials and descriptions of the proposed use and development.

D. Any use permitted under this process must also, as a minimum, conform to the development regulations for the corresponding underlying general zoning district, unless the Town Council approves conditions reducing dimensional standards.

E. In approving a Conditional Zoning District, the Town Council may approve, with the mutual agreement of the applicant, such additional conditions and site-specific standards as needed to address the conformance of the development and use of the site to local government ordinances, plans adopted pursuant to G.S. 160D-501, or the impact reasonably expected to be generated by the development or use of the site.

F. These conditions must be agreed upon by all property owners within the Conditional Zoning District. Applicants and landowners must consent to approved conditions in writing. Unless consented to by the petitioner in writing, in the exercise of the authority granted by this section, a local government may not require, enforce, or incorporate into the zoning regulations any condition or requirement not authorized by otherwise applicable law, including, without limitation, taxes, impact fees, building design elements within the scope of G.S. 160D-702(b), driveway-related improvements in excess of those allowed in G.S. 136-18(29) and G.S. 160A-307, or other unauthorized limitations on the development or use of land.

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G. In order to secure Zoning Permit or Final Plat approval, the applicant shall follow through with the Administrative Approval process for Construction Drawings outlined in Chapter 17.

H. Any request to materially change the conditions specified within a Conditional Zoning District once it has been rezoned shall be subject to the entire Town Council Approval process.

15.6.2 Planning Board Action

A. The Planning Board shall have up to 30 days from the date of referral by the Zoning Administrator to recommend approval, approval with conditions, or denial of the request to the Town Council.

B. The Planning Board shall include with its recommendation a written statement regarding the consistency of the request with adopted Town plans and policies and the surrounding area.

C. The Planning Board shall also include with its recommendation a written statement regarding the reasonableness of the request.

15.6.3 Town Council Action

A. Upon receipt of a recommendation from the Planning Board, the Town Council shall conduct a public hearing. Notice of the public hearing shall be given as follows:

1. A notice shall be published in a newspaper having general circulation in the Town once a week for two (2) consecutive weeks provided that the first notice is published not less than 10 days nor more than 25 days prior to the date established for the public hearing. The expanded published notice option for Rezoning (map amendments) noted in (B) below shall consist of a notice not less than one-half (1/2) of the newspaper page in size.

2. A notice of the public hearing shall also be sent by first class mail by the Zoning Administrator or designee to the affected property and to all contiguous property owners. The first-class mail notice shall not be required if a Rezoning (map amendment) directly affects more than 50 properties owned by a total of at least 50 different property owners. Instead, the Town may elect to use expanded published notice as noted above in A.1.

B. For Rezoning (map amendments), the Town shall conspicuously post a notice of public hearing at the site proposed for rezoning at least 10 days prior to the public hearing. When multiple parcels are included within a proposed map amendment, a posting on each individual parcel is not required, but the Town shall post sufficient notices to provide reasonable notice to interested persons. The notice shall be removed only after the public hearing has been held.

C. Prior to the public hearing, any resident or property owner within the Town's jurisdiction may submit a written statement regarding a proposed zoning map amendment to the Town Clerk. If received by the Clerk at least two business days prior to the proposed vote on the amendment, the Clerk shall deliver said statement to the Town Council.

D. After the public hearing, the Town Council shall have up to 60 days to refer back to the Planning Board, approve, approve with conditions, or deny the request. Alternatively, the Town Council may suspend the review period and request additional information of the applicant, other governmental agencies, or interested/affected parties in order to aid in the review of the request or deferral of its consideration.

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E. Upon approval of the map amendment, the Zoning Administrator shall oversee the updating of the Zoning Map to reflect the approved changes.

15.6.4 Effect of Approval and Expiration

A. If a petition for Conditional Zoning is approved as provided for herein, the district that is established, and all conditions which may have been attached to the approval are binding on the property as an amendment to the Zoning Map. Subsequent development on the property(ies) in question shall be in accordance with the standards for the approved CZ district, and any conditions attached to the approval. Except as herein provided for “minor modifications”, changes to the approved petition or to the conditions attached to the approval shall be treated the same as an amendment to the Zoning Map and shall be processed in accordance with the Town Council approval process. Minor modifications in the detail of the approved application may be made with the approval of the Zoning Administrator subject to Section 17.12 Administrative Modifications.

B. It is intended that property be rezoned to a Conditional Zoning District only in light of firm plans to develop the property. Therefore, after the date of approval of the Conditional Zoning District, if a building permit has not been secured or final plat recorded at the end of two (2) years following the date of the approval of the Conditional Zoning District, the Zoning Administrator shall notify the applicant of such a finding. The Zoning Administrator shall then have the Planning Board make a recommendation to the Town Council regarding the rescission of the Conditional Zoning District and the zoning of the property revert to the zoning district in effect prior to the initial approval.

Section 15.7 Resubmission of Request

A. If the Town Council has denied an application for the rezoning of a piece of property or has approved a rezoning to a general zoning district which is more restrictive than that which was originally requested, the Planning Board shall not review any applications for the same changes affecting the same property or any portion thereof until the expiration of one (1) year from the date of such previous denial except as provided below.

B. The Zoning Administrator may allow re-submission of such petitions within said one (1) year period if he determines that, since the date of action on the prior petition:

- There has been a significant change in the zoning district classification of an adjacent piece of property; or
- The Town Council has adopted a plan that changes public policy regarding how the property affected by the amendment should be developed;
- Construction or expansion of a road, water line, sewer line, or other such facilities has occurred to serve the property and can comfortably accommodate the intensity of development allowed under the proposed classification; or
- There has been some other extraordinary change in conditions or circumstances, outside the control of the petitioner, which justifies waiver of the one-year restriction on a new petition; this, however, shall not include a change in the ownership of the subject property.